RUMBIDZAI PRIMROSE TAGARIRA
versus
VIMBAISHE MUNGARAZA
and
KARIBA TOWN COUNCIL

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 12 November 2025 & 27 February 2026

Preliminary Points-Declaratur

R Madondo, for the applicant
K Tundu, for the 1st respondent
No appearance for the 2nd respondent

MAXWELL J: Applicant approached the court seeking the following order.

"IT IS ORDERED THAT

1. The agreement signed between Miriam Chinake and Banabas Taderera ceding the minor child Patience Tagarira's right, title ad interest in stand No. 490 Nyamhunga Township Kariba, to Banabas Taderera be and is hereby declared null and void.
2. The second respondent and all those claiming through her and or through the late Banabas Tanderera, shall vacate stand Number 490 Nyamhunga Township Kariba on service of this order failing which the Sheriff of the High Court of Zimbabwe shall evict them.
3. The third respondent shall upon satisfaction of its cession requirements cede the late Patience Tagarira's right, title and interest in stand No 490 Nyamhunga Township to the applicant, Wadzanai EdithTagarira and TaropafadzwaTagarira in equal shares.
4. The first respondent shall pay the costs of this application on a legal practitioner client scale."

Applicant stated in the Founding Affidavit that she was appointed the executrix in the estate of her paternal cousin, Patience Tagarira on 10 July 2013. Patience Tagarira passed on in Kadoma on 15 November 2003. On 4 August 1999 the late Patience's mother Miriam Chinake who is now deceased purported to sale stand Number 490 Nyamhunga Township Kariba to one Barnabas Taderera. At the time of the purported sale, stand Number 490 Nyamhunga Township Kariba belonged to Patience Tagarira who was a minor. The stand is still registered in the late

Patience Tagarira's name. The late Barnabas Taderera and his family took occupation of the house around 1998. Barnabas died and the first respondent obtained a certificate of authority from the Master of the High Court that enables her to have Barnabas' rights in the stand ceded to her. The stand in contention was awarded to applicant, Wadzanai Edith Tagarira and Taropafadzwa Tagarira in the Distribution Account of the estate late Patience Tagarira.

First respondent opposed the application. She raised points *in limine* to the effect that there was material non-joinder of the Master of the High Court and that the matter has prescribed. On the merits she submitted that there was nothing wrong with a natural guardian executing an agreement on behalf of a minor and there was no law prohibiting such agreements. She stated that there was no need to appoint a *curator ad litem* at the relevant time. She pointed out that her late husband's agreement was accepted by the Master while on the other hand the applicant's distribution account was also accepted. She however, pointed out that she was given authority before the applicant's distribution account was approved by the Master. She averred that as long as her certificate of authority has not been cancelled, she remains the rightful owner of the stand in dispute and the applicant cannot evict her from the premises.

First respondent filed a counter-application claiming the value of the improvements made on the property. She stated that her late husband paid the full purchase price for the property in issue. There was only a two-roomed structure when the property was bought and she extended it to seven rooms. She pointed out that applicant did not pay anything towards the purchase price or improvement and there was no legal basis for the applicant to benefit from the improvements she effected. She claimed $25 140.50 as the value of the improvements made on the premises.

In response to the counter-application the counter respondent stated that there are material disputes of fact which cannot be resolved on the papers. She pointed out that no evidence proving the purchase of the house was tendered. She stated that she was advised that the counter-applicant and her husband were tenants on the property in 1998. She disputed that any improvements were made on the property. She disputed the amount claimed and indicated that the valuation certificate does not show that figure.

Points *in limine*

(i) That applicant has not cited the Master of the High Court

Rule 61(i)(a) of SI 202 of 2021 provides that

> "61. In the case of an application in connection with-
> (a) The estate of a deceased person,or
> (b) …
> A copy of the application shall be served on the Master not less than ten days before the date of set down for his or her consideration, and for report by him or her if he or she considers it necessary or the court requires such a report."

First respondent argued that the non-citation of the Master is fatal as the matter cannot be resolved without his input. In response applicant made reference to rule 32 [11] of this court's rules which sates.

> "11. No cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter."

In the light of r 32(11) of SI 202 of 2021, the preliminary point has no merit. Moreover, r 61(11) of the same rules gives the Master the discretion to submit a report in a matter. What is required of a litigant is to serve the Master with the application. The application therefore cannot fail simply because the Master was not cited as a party.

(2) **Whether or not the matter has prescribed.**

First respondent submitted that the agreement of sale giving rise to this matter was signed in 1999 and the matter therefore prescribed. Further that the executor was appointed on the 10th of July 2013 and did not take action until twelve years later. It is trite that prescription begins to run when one has knowledge of the full set of facts which can lead one to succeed in his claim. The "full set of facts" are facts that the plaintiff has to alleged in his or her declaration in order to disclose a cause of action but does not include the evidence that is necessary to support such a cause of action. See *Chiwawa* v *Mutzuris and Others* HH 7/2009. Applicant argued that the full set of facts were complete in August 2024 when the distribution account of the estate late Patience Tagarira was approved. In the alternative, Mr *Madondo* argued that the cause of action does not constitute a debt as defined by the Prescription Act [*Chapter 8.11*] and therefore prescription does not arise. Section 2 of the Prescription Act [*Chapter 8.11*] defines a debt as;

> "debt, without limiting the meaning of the term, includes anything which may be sued for or claimed by reason of an obligation arising from statute contract, delict or otherwise."

Mr *Madondo* referred to the case of *Ndlovu* v *Ndlovu and Anor* 2013(1) ZLR 110 in which it was stated that the applicant's claim based on the alleged nullity of a sale transaction did not arise from a debt as defined in the Act. The question is whether *in casu* the alleged sale was

valid. It is common cause that immovable property belonging to a minor was disposed of. Whether or not that disposal was proper is an issue for the merits of the matter.

However, since the matter centres on inheritance, I am not persuaded that it is in the category of a debt as defined in the Prescription Act [*Chapter 8.11*]. Since the issue of the validity of the agreement of sale is yet to be determined, there is a probability that the decision in *Ncube* v *Ncube and Anor (supra)* is applicable. Counsel for the first respondent did not cite any authority that is contrary to the finding in *Ncube v Ncube and Anor* (*supra*). I therefore find that this preliminary point fails as well.

Consequently, the preliminary points failed. The matter must be argued on the merits. I make the following order.

1. The preliminary points be and are hereby dismissed.
2. The matter is to be set down for argument on the merits on the next available date.

Maxwell J:…….

Mabulala & Dembure, applicant's legal practitioners
Tundu Law Chambers, first respondent's legal practitioners